

**Superior Court of the State of California
County of Orange**

TENTATIVE RULINGS FOR DEPARTMENT C21

JUDGE CRAIG E. ARTHUR

Date: August 21, 2026

The court will endeavor to post tentative rulings on the Court's website by 4:00 p.m. on the day before the Law and Motion Calendar. However, ongoing proceedings may prevent posting by that time. Please do not call the department for tentative rulings if none are posted. The court will not entertain a request for continuance once a tentative ruling has been posted and no additional papers will be considered once a tentative ruling has been posted.

If all parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling (657-622-5221). The tentative ruling will then become the order of the Court.

The Law and Motion Calendar is typically heard on Fridays at 10 a.m., unless otherwise noted. All arguments will be heard at that time. Unless otherwise indicated in the tentative ruling, the prevailing party will give Notice of Ruling. If no one appears for the hearing, the court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

APPEARANCES: The Court offers remote appearances for the Law and Motion Calendar via Zoom. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings> , and then click on Department C21 (to check-in). The Court's "Civil Desktop Remote Appearance Video," an instructional video, is available through the Court's website at [Civil Desktop Remote Appearance Video](#), and the Court's "Civil Mobile Application Remote Appearance Video" is available through the Court's website at [Civil Mobile Application Remote Appearance Video](#). If you encounter difficulty checking-in online or connecting remotely, please call Department C21 for assistance at (657) 622-5221. Counsel and self-represented parties preferring to appear in-person may do so.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. Please see the Court's website for further information. The Court's policy on privately-retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50	<i>Belmont Asset Solutions, LLC vs. Hall</i>	Before the Court is Defendants Brian T. Hall, Michele A. Hall, Defenders Northwest LLC, and Autohome USA, Inc.'s motion for summary judgment or alternatively adjudication of Plaintiffs Chad Ullery and Belmont Asset Solutions, LLC's Complaint. In opposition, it appears that Plaintiffs served declarations of Aaron Cuha, Yuri Vanetik, and Chad Ullery, as Defendants provide evidentiary objections on reply. The Court does not have these documents. Plaintiffs are ordered to file them prior to the hearing on the motion.
51	<i>Baron vs. Pearce</i>	<i>Renewed Motion to Compel Responses to Requests for Production and Production of Documents</i> The motion by Plaintiff September Baron ("Plaintiff") for an order compelling Defendants Wesley Pearce and Sarah Pearce (collectively, "Defendants") to serve verified further responses to Plaintiff's First Set of Request for Production of Documents and produce all responsive documents is DENIED. As an initial matter, the Court notes Plaintiff did not file any proof of service for Plaintiff's notice of motion and moving papers, nor any proof of service for Plaintiff's untimely reply. Defendants served and filed a timely opposition without objecting to service. However, it is unclear whether Defendants received a copy of the reply.

		The parties should be prepared to discuss at the hearing whether the reply was properly served on Defendants. The Court also notes that Plaintiff's untimely reply exceeds the ten-page limit. (Code Civ. Proc., § 1005, subd. (b) [All reply papers must be filed and served at least five court days before the hearing.]; Ca. Rules of Ct., Rule .1113(d) ["No reply or closing memorandum may exceed 10 pages."].) Plaintiff did not obtain leave to file a longer reply memorandum, nor did Plaintiff's reply include a table of contents and a table of authorities. (Cal. Rules of Ct., Rule 3.1113(e) and (f).) Subject to any objections regarding service of Plaintiff's reply, the Court exercises its discretion and considers the first ten pages of the memorandum, not including the caption page, exhibits, or declaration. (Cal. Rules of Ct., Rule 3.1113(g) ["A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper."].) The Court further notes Plaintiff submits additional evidence in support of Plaintiff's reply. "The general rule of motion practice...is that new evidence is not permitted with reply papers...[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case ...' and if permitted, the other party should be given the opportunity to respond." (Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537-1538.) Reply evidence should not address substantive issues in the first instance but only fill gaps in the evidence created
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	by opposition. (Id., at 1538.) The Court exercises its discretion to consider Plaintiff's reply evidence. Defendants may address the reply evidence during the hearing. Defendants contend Plaintiff did not comply with Code of Civil Procedure section 1008 for bringing this renewed motion. On February 20, 2026, the Court denied Plaintiff's motion to compel production without prejudice for Plaintiff's failure to show Defendant's failure to produce and expressly stated Plaintiff may refile if such a showing can be made. CCP section 1008 is inapplicable when the trial court indicates it wanted to reconsider the motion when it denied the first motion without prejudice. "Denial of a motion without prejudice impliedly invites the moving party to renew the motion at a later date, when he can correct the deficiency that led to the denial." (<i>Farber v. Bay View Terrace Homeowners Assn.</i> (2006) 141 Cal.App.4th 1007, 1015; see, <i>Sanai v. Saltz</i> (2009) 170 Cal.App.4th 746, 782.) Because Plaintiff's motion to compel was denied without prejudice and the Court expressly invited Plaintiff to refile when Plaintiff could show Defendants failed to produce documents, Plaintiff need not comply with section 1008. In addition, although Plaintiff labels this motion a renewed motion, it really isn't a renewed motion. The nature of a motion is determined by the nature of the relief sought, not by the label attached to it. (See, <i>California Correctional Peace Officers Assn. v. Virga</i> (2010) 181 Cal.App.4th 30,
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	43.) “The principle that a trial court may consider a motion regardless of the label placed on it by a party is consistent with the courts inherent authority to manage and control its docket. (Code Civ. Proc., §§ 128, subd. (a), 187.).” (<i>Sole Energy Co. v. Petrominerals Corp.</i> (2005) 128 Cal.App.4th 187, 193.) When Plaintiff filed the initial motion, the “moving paper” was Plaintiff’s request for production that shouldn’t have been filed with the Court. (Code Civ. Proc., § 2031.290, subd. (a) [A demand for inspection “shall not be filed with the court.”]; see, Cal. Rules of Ct., Rule 3.250(a)(9) [Demand for production “may not be filed unless they are offered as relevant to the determination of an issue in a law and motion proceeding or other hearing or are ordered filed for good cause.”].) Defendant’s initial motion was not really a motion; however, the parties treated it like a motion by the time the opposition and reply were filed. The Court declines to find Plaintiff is required to comply with section 1008 to bring this motion. A notice of motion to compel further responses to requests for production must be served within 45 days. (Code Civ. Proc., § 2031.310, subd. (c) [“Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.”].) The 45-day limitation to compel further responses to a request for production is jurisdictional and if the
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	moving party does not comply with the 45-day limitation, the Court is “without authority to rule on motions to compel other than to deny them.” (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410.) Plaintiff’s motion to compel further responses to request for production numbers 1-15 is denied as untimely. There is no dispute that Defendants served verified responses on October 16, 2026, and that no supplemental responses were served thereafter. (Cacali Decl., ¶¶ 2-3, Exhibit A.) Plaintiff did not file this motion until March 11, 2026, several months after Defendants served verified responses. To the extent Defendants’ responses were missing responses to numbers 7 and 8, that has now been remedied with the complete responses served with the opposition. The Court notes a missing page is one of the issues that would have been more efficiently resolved through a meaningful meet and confer. Pursuant to Code of Civil Procedure section 2031.320, subdivision (a), if a party filing a response to a demand for inspection, copying, testing, or sampling fails to permit the inspection, copying, testing, or sampling in accordance with that party’s statement of compliance, the demanding party may move for an order compelling compliance. There is no fixed time limit on a motion to compel compliance as agreed. (<i>Standon Co., Inc. v. Superior Court</i> (1990) 225 Cal.App.3d 898, 903.)
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	Defendants agreed to produce documents responsive to request for production numbers 4 and 5. (Cacali Decl., Exhibit A.) Defendants' responses to the remaining requests did not indicate any documents would be produced. Plaintiff did not show what documents responsive to these two requests were not produced. To the extent a quitclaim deed referenced a trust dated April 29, 2024, Plaintiff did not show the trust would be responsive to either request number 4 or number 5. Accordingly, Plaintiff's motion to compel compliance is DENIED. No sanctions are warranted against any party at this time. (Code Civ. Proc., §§ 2031.310, subd. (h) and 2031.320, subd. (b).) The Court reminds the parties that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985; <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247.) A self-represented litigant is not entitled to any greater consideration than other litigants and attorneys. (<i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal. Rules of Court, Rule 1.6(15) [defines "parties" as including both self-represented persons and persons represented by an attorney of record without making any distinction between them].) The fact that Plaintiff
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		is a self-represented litigant does not relieve her of the requirements, law, and procedures applied to all parties who appear in this court. Self-represented litigants are “held to the same standards as attorneys.” (<i>Kobayashi v. Superior Court</i> (2009) 175 Cal.App.4th 536, 543.) Defendants shall give notice.
52	<i>Benefit Street Partners Realty Operating Partnership, L.P. vs. Tauro Capital Advisors, Inc.</i>	Continued to August 28, 2026, at 10:00 a.m. in Department C-21.
53	<i>Citizens Business Bank vs. Sovereign Arts and Metal Finishing LLC</i>	Continued to August 28, 2026, at 10:00 a.m. in Department C-21.
54	<i>Off calendar</i>	
55	<i>Mercado-Mora vs. Figueroa</i>	Partition Referee Matthew L. Taylor’s motion for instructions is granted in part. The Partition Referee is instructed that sale of the real property in Buena Park (the “property”) that is the subject of the court interlocutory judgment for partition by sale is not stayed by defendant Jasmin Figueroa’s appeal from the interlocutory judgment in the absence of posting of a bond. The

	court declines to issue an opinion whether the sale “should be” stayed. [ROA #162.] <i>Facts</i> This is an action for partition of real property between two individuals. [Complaint (ROA # 2).] On 2/6/26, after a trial, the court entered on interlocutory judgment ordering partition of the Buena Park property by private sale. [Interlocutory Judgment (ROA #153).] In the same judgment, the court appointed the Partition Referee to effect the sale [Id., ¶ 5.] Defendant Jasmin Figueroa appealed the interlocutory judgment. [ROA ## 139, 155.] There is no record of a bond amount being set or a bond being posted [See also [Motion MPA (ROA #162) at 4:10-11 (Partition Referee unaware of any bond).] According to the Partition Referee, Defendant and Appellant Figueroa remains in possession of the property. [Motion MPA at 4:9.] <i>Legal Standard</i> Both by statute and by the terms of the interlocutory judgment, the Partition Referee may properly seek instruction from the court. Code Civ. Proc. §873.070. [Interlocutory Judgment, ¶ 16.] The Partition Referee now seeks instruction as to whether, given an apparent conflict between case law and a more recent statute, Defendant/Appellant’s appeal created an
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	automatic stay that stays his duties to sell, and/or the sale of, the property. He also seeks instruction whether, in any event, the sale should be stayed given the difficulty of selling while the appeal is pending. <i>Is There an Automatic Stay in Place?</i> The question raised by the Partition Referee’s request for instruction is how to resolve the seeming conflict between the California Supreme Court’s old decision in <i>Williams v. Wells Fargo Bank & Union Trust Company</i> (1941) 17 Cal.2d 104, which found the partition judgment in that case automatically stayed, and the 1968 statute, Code of Civil Procedure section 917.4, which provides that there is no automatic stay after an order to sell real property that is in the control or possession of the appellant or party ordered to sell. <u>The Law</u> There is no published case law on this point. Numerous treatises cite <i>Williams</i> and, without discussion, recite that an appeal from an interlocutory judgment automatically stays further trial court proceedings on the judgment. <i>See, e.g.,</i> Cal. Prac. Guide Civ. App. & Writs Ch. 7-B §7:89 (citing CCP § 904.1(a)(9) and <i>Williams v. Wells Fargo Bank</i> (1941) 17 C2d 104, 107); 9 Witkin, Cal. Proc. 6th Appeal § 289 (2026); 4 Cal. Jur. 3d Appellate Review § 413. In <i>Williams v. Wells Fargo Bank & Union Trust Company</i> (1941) 17 Cal.2d 104, the California Supreme Court was asked by the appellant to
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	issue a writ of supersedeas staying the judgment for partition by sale. The real property in <i>Williams</i> was farmland owned by Ms. Williams and Wells Fargo Bank as co-tenants. In a partition action Ms. Williams and the Bank, respectively, sought partition in kind and partition by sale. The trial court ordered the property to be sold and appointed referees for that purpose. Ms. Williams appealed from the interlocutory decree of partition (directing sale of the property) and sought a writ of supersedeas staying all proceedings until the decision on her appeal. “In the absence of specific provision concerning an interlocutory judgment of partition under section 949 of the Code of Civil Procedure, the perfecting of an appeal stays proceedings in the lower court upon such a decree.” <i>Williams v. Wells Fargo Bank & Union Trust Co.</i> (1941) 17 Cal. 2d 104, 107. Four years later, the California Court of Appeal confirmed that “[a]n appeal from an interlocutory decree in partition operates as a stay without bond.” <i>Neusted v. Skernswell</i> (1945) 69 Cal. App. 2d 361, 369-370. But in 1968, California enacted section 917.4 of the California Code of Civil Procedure. Again, in <i>Williams</i> the Court relied on former Code of Civil Procedure section 949 – which provided the general rule regarding stays on appeal. The general stay on proceedings in the trial court following perfection of an appeal is now found in Code of Civil Procedure §916. The <i>exceptions</i> to the general stay are now found in
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	Code of Civil Procedure sections 917.1 through 917.9. The statutes which <i>formerly</i> identified exceptions to the general stay – Code of Civil Procedure sections 942-945 -- were repealed in 1968. Former Code of Civil Procedure section 945 -- the precursor of CCP §917.4, the statute now at issue -- was in effect when the Supreme Court decided <i>Williams</i>. No mention of section 945 appears in the Supreme Court's opinion. That statute, as it read in 1941, stated there would be no stay on appeal from “direct the sale or delivery of possession of real property” unless the appellant filed a bond against waste while he was in possession. <u>Williams Statutes</u> In 1941, the year in which <i>Williams</i> was decided section 949 read: In cases not provided for in sections 942, 943, 944 and 945, the perfecting of an appeal stays proceedings in the court below under the judgment or order appealed from; but the court in its discretion may require an undertaking in an amount to be fixed by it conditioned for the performance of the judgment or order appealed from if the same is affirmed or the appeal is dismissed;... Section 945 read: If the judgment or order appealed from, direct the sale or delivery of possession of
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		real property, the execution of the same cannot be stayed, unless a written undertaking be executed on the part of the appellant, with two or more sureties, to the effect that during the possession of such property by the appellant, he will not commit, or suffer to be committed any waste thereon, and that if the judgment be affirmed, or the appeal dismissed, he will pay the value of the use and occupation of the property from the time of the appeal until the delivery of possession thereof, pursuant to the judgment or order, not exceeding a sum to be fixed by the judge of the court by which the judgment was rendered or order made, and which must be specified in the undertaking. When the judgment is for the sale of mortgage premises, and the payment of a deficiency arising upon the sale, the undertaking must also provide for the payment of such deficiency. As noted above, Code of Civil Procedure section 949 was repealed in 1968. <u>Current Statutes</u> Except as provided in Sections 917.1 to 917.10, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not
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	affected by the judgment or order. Code Civ. Proc., § 916(a) The perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order appealed from directs the sale, conveyance or delivery of possession of real property which is in the possession or control of the appellant or the party ordered to sell, convey or deliver possession of the property, unless an undertaking in a sum fixed by the trial court is given that the appellant or party ordered to sell, convey or deliver possession of the property will not commit or suffer to be committed any waste thereon and that if the judgment or order appealed from is affirmed, or the appeal is withdrawn or dismissed, the appellant shall pay the damage suffered by the waste and the value of the use and occupancy of the property, or the part of it as to which the judgment or order is affirmed, from the time of the taking of the appeal until the delivery of the possession of the property. If the judgment or order directs the sale of mortgaged real property and the payment of any deficiency, the undertaking shall also provide for the payment of any deficiency. Code Civ. Proc. § 917.4. Based on the legislative history, the revisions enacted with section 917.4 were not intended to be substantive. [See Motion MPA, Ex. 1, p. 5, at 917.4.] /// ///
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Discussion

The Legislature's intent in enacting section 917.4 (as well as its predecessor, section 945) based on their terms, appears to be to prevent waste of the real property before it can be sold.

Both former section 945 and section 917.4 focus on the appellant and person in possession of the property as the one with the power to create delay and waste. In former section 945, the party appealing from a judgment for sale by partition must post a bond and attest he will not create or allow waste. Section 917.4 similarly provides there is no automatic stay with an appeal from an order to sell property “which is in the possession or control of the appellant or the party ordered to sell.”

In *Williams*, the court made no reference to section 945. There, Mrs. Williams, the appellant, was neither in possession nor was the party ordered to sell the property. Indeed, the opinion states that referees were appointed. *Williams v. Wells Fargo Bank & Union Trust Company*, 17 Cal.2d at 105. Further, the description of the property is only as farmland that Mrs. Williams owned only a quarter of, while the Bank owned three-quarters. *Id.* at 105, 106 (“the only present use of the land is for dry farming; for this reason she says, it is now of very little value, but if the ditch of a proposed irrigation project is located on the land its value will be materially increased”). This seems to be consistent with an appellant not in possession of the property to be sold. Certainly, from the opinion, it is difficult to

		assume Mrs. Williams <i>was</i> in control or that the California Supreme just missed the applicability of section 945. In the present case, appellant Figueroa <i>is</i> in control of the property to be sold. Her ability to commit or allow waste of the property prior to sale – and during any stay on appeal – is thus manifest. On its face, then, Code of Civil Procedure section 917.4 applies. And, on its face, the opinion in <i>Williams v. Wells Fargo Bank & Union Trust Company</i> (1941) 17 Cal.2d 104 is not in conflict because there is nothing in that opinion that suggests Mrs. Williams was in a position to commit waste and thus implicate former section 945. Accordingly, the court finds there is no stay as a result of the appeal that stays the Partition Referee’s duties or his sale of the property.
56	<i>Off calendar</i>	
57	<i>Off calendar</i>	
58	<i>Off calendar</i>	
59	<i>Plane Fetch LLC vs. Ignite Enterprises, LLC</i>	The Court continues the motion to October 16, 2026, and directs counsel for the parties to meet and confer either in person or by telephone at a mutually convenient date within 20 days of this order to narrow the issues presented by the instant motions. The Court further orders counsel to prepare a joint statement of issues remaining

		in dispute that is no more than five pages and submit that joint statement no later than two weeks before the continued hearing date. Plaintiff and Cross-Defendant to provide notice.
60	<i>U.S. Bank National Association vs. Best Time Logistics Inc</i>	The Court grants Law Office of Mandeep S. Rupal and Mandeep Rupal's Motion to be relieved as Counsel for Defendant Partap Singh. Counsel has used the required forms, all required information is supplied, and service now is proper. (California Rules of Court, rule 3.1362.) Mr. Rupal shall submit a new proposed order with all of the items filled out and accurate dates. After the Court signs the Order, Mr. Rupal Esq. shall then serve the signed Order on all Counsel who have appeared and Partap Singh, and then file a proof of service showing the same. Law Office of Mandeep S. Rupal and Mandeep Rupal will be relieved as counsel only upon filing the proof of service showing that a copy of the signed order was properly served. The Court notes that Mr. Rupal was relieved as Counsel for Defendant Best Time Logistics Inc. on 7/17/26, but it does not appear that a new proposed order was filed yet per the Court's instruction. (ROA 115.) Mr. Rupal Esq. shall serve notice of this Order.
61	<i>Viveros vs. Aaron Transport, Inc</i>	The unopposed motion by Defendant Aaron Stogden Garcia, dba Aaron's Transport for an order compelling Plaintiff Oswaldo Vivero's

	(“Plaintiff”) compliance with Defendant’s demand for inspection of Plaintiff’s cell phone and all mobile devices, and for the imposition of sanctions is DENIED. Although Defendant seeks an order compelling compliance with Defendant’s request for production of Plaintiff’s cell phone and mobile devices, Defendant does not cite to the applicable statute to seek compliance in Defendant’s notice of motion or moving papers. Defendant only cites to CCP section 2031.310. (Motion, 4:23-28.) The applicable statute is CCP section 2031.320. Pursuant to Code of Civil Procedure section 2031.320, subdivision (a), if a party filing a response to a demand for inspection, copying, testing, or sampling fails to permit the inspection, copying, testing, or sampling in accordance with that party’s statement of compliance, the demanding party may move for an order compelling compliance. Defendant seeks an order compelling Plaintiff’s compliance with Defendant’s demand for inspection of Plaintiff’s cell phone and all mobile devices. However, Defendant did not show Plaintiff responded to Defendant’s demand with a statement of compliance. Rather, Plaintiff responded by way of objections and expressly stated Plaintiff will not be producing Plaintiff’s cell phone under the scope of the demand. (Sullivan Decl., Exhibit C.) Although Plaintiff offered to meet and confer regarding an alternative production, no agreement was reached. (Id., Exhibit C and Exhibit D.)
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	Accordingly, the unopposed motion to compel compliance is denied. To the extent Defendant seeks a further response to this demand, because that is the legal authority Defendant cited to in the moving papers, the unopposed motion for a further response is also denied. A notice of motion to compel further responses to requests for production must be served within 45 days. (Code Civ. Proc., § 2031.310, subd. (c).) The 45-day limitation to compel further responses to a request for production is jurisdictional and if the moving party does not comply with the 45-day limitation, the Court is “without authority to rule on motions to compel other than to deny them.” (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Plaintiff sent Plaintiff’s objections on February 10, 2026. (Sullivan Decl., ¶ 5, Exhibit C.) Defendant did not serve and file this motion until April 21, 2026. Accordingly, to the extent Defendant seeks an order compelling a further response to Defendant’s inspection demand, the unopposed motion is denied as untimely. No sanctions. Defendant shall give notice.
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